

The 2025 reforms changed the way NEPA is implemented in the federal gov but did not repeal NEPA. The council on Environmental Quality removed its government wide NEPA Regulations from the code of federal regulation.

The regulations that stayed the same were NEPA's statutory requirements, where agencies still need to determine the appropriate level of environmental review and create an EA or EIS when needed. Also the need for judicial review stays.

The changes both do and don't address the incentive issues and sources of delay Potter described, but might make it worse as shifts more burden of environmental review onto those working on the project. At the same time, since more of it is shifted onto the company making the project, there wouldn't be issues like federal delay or cross communication issues, which might at the same time expedite the process. If the company working on the project is able to properly assess it themselves, then it would be in benefit and better expedited. Potter argued that fear of litigation encouraged agencies to make litigation immune records, which would take a significant amount of time. If not, it could lead to issues that delay the project more if the requirements aren't when the agencies need to determine their own levels.

Thus, the reforms could be faster for the construction of clean energy infrastructure, but there would be risk in things not being identified and litigation issues being put on the board, which would then make the entire process eventually slower.

<https://public-inspection.federalregister.gov/2025-03014.pdf?1740404707>

<https://public-inspection.federalregister.gov/2026-13245.pdf?1782823512>

Verified reform and changes implemented in NEPA.

<https://www.construction-physics.com/p/how-nepa-works>

https://www.nuclearbarbarians.com/p/tickling-the-dragon-ft-matt-loszak?utm_campaign=post&utm_medium=web

Verified information on NEPA and claims on the renewable energy